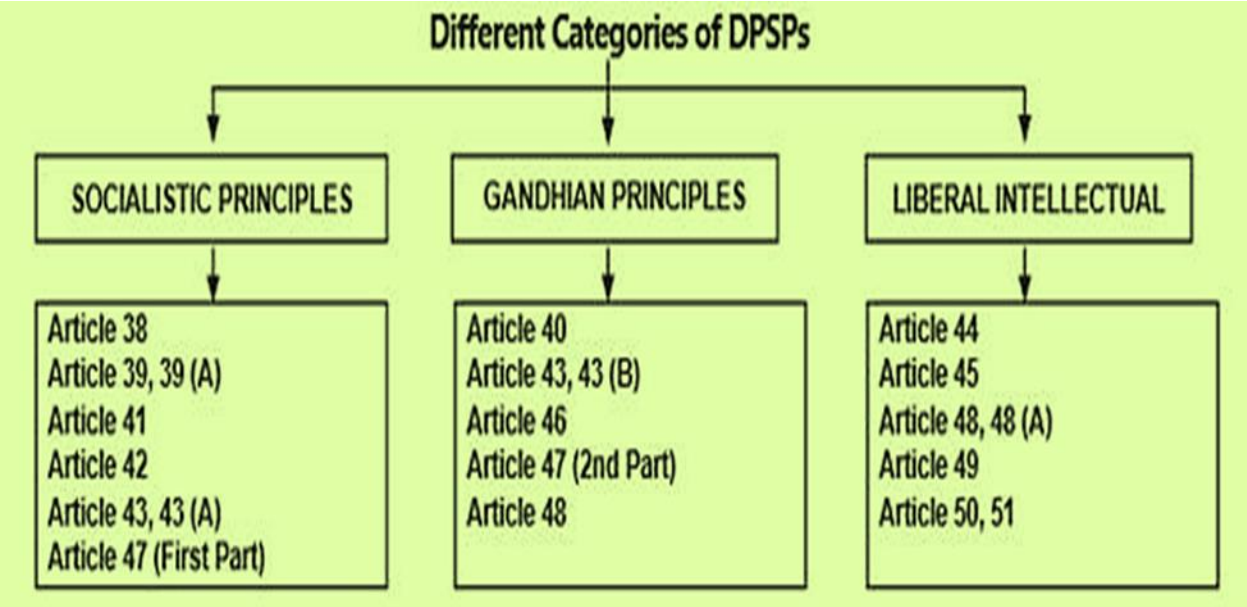
Module 3

Directive Principles of State Policy (DPSP's) and its present relevance in Indian society. Fundamental Duties and its Scope and significance in Nation, Union Executive: Parliamentary System, Union Executive – President, Prime Minister, Union Cabinet.

Directive Principles of State Policy (DPSP) (Articles 36 to 51)

- DPSP are extracted from Irish Constitution of 1937.
- DPSP are known as Instrument of Instructions.
- DPSP are non-enforceable and non-justiciable, known as toothless tiger.
- DPSP are useful for good governance of the country.
- DPSP are used to measure the social and economic development of the country.



Classification of DPSP

1. **Socialist Principles:**
   - To secure and protect a social order which stands for the welfare of the people (Art- 38).

- To secure adequate means of livelihood to all citizens, equal pay for equal work for men and women, and to protect childhood and youths against exploitation (Article- 39).
- To secure equal justice and free legal aid to the poor (Article-39A).
- To secure employment, education and public assistance for employment (Article-41).
- To secure just human conditions of work and maternity relief (Article-42).
- To give a proper care for weaker sections.

2. Gandhian Principles

- The state shall organize village panchayat (Article-40).
- To promote cottage industries (Article-43).
- To promote with special care, the educational and economical interest of weaker section-SC/ST(Article-46).
- To secure improvement of public health and the prohibition of intoxicating drinks (Article-47).
- To organize agriculture and animal husbandry on scientific lives and preserve and improve the breeds and prohibit the slaughter of cows (Article-48).

3. Liberal Principles

- To secure uniform civil code applicable to entire country (Article-44).
- To provide free and compulsory education to all children up to age of 14 (Article - 45).
- To protect all monuments of historical interest and national importance (Article-49).
- To separate judiciary from executive (Article-50) ⎫
- To maintain international peace and security, maintain honourable relation between nations.



Significance of DPSP

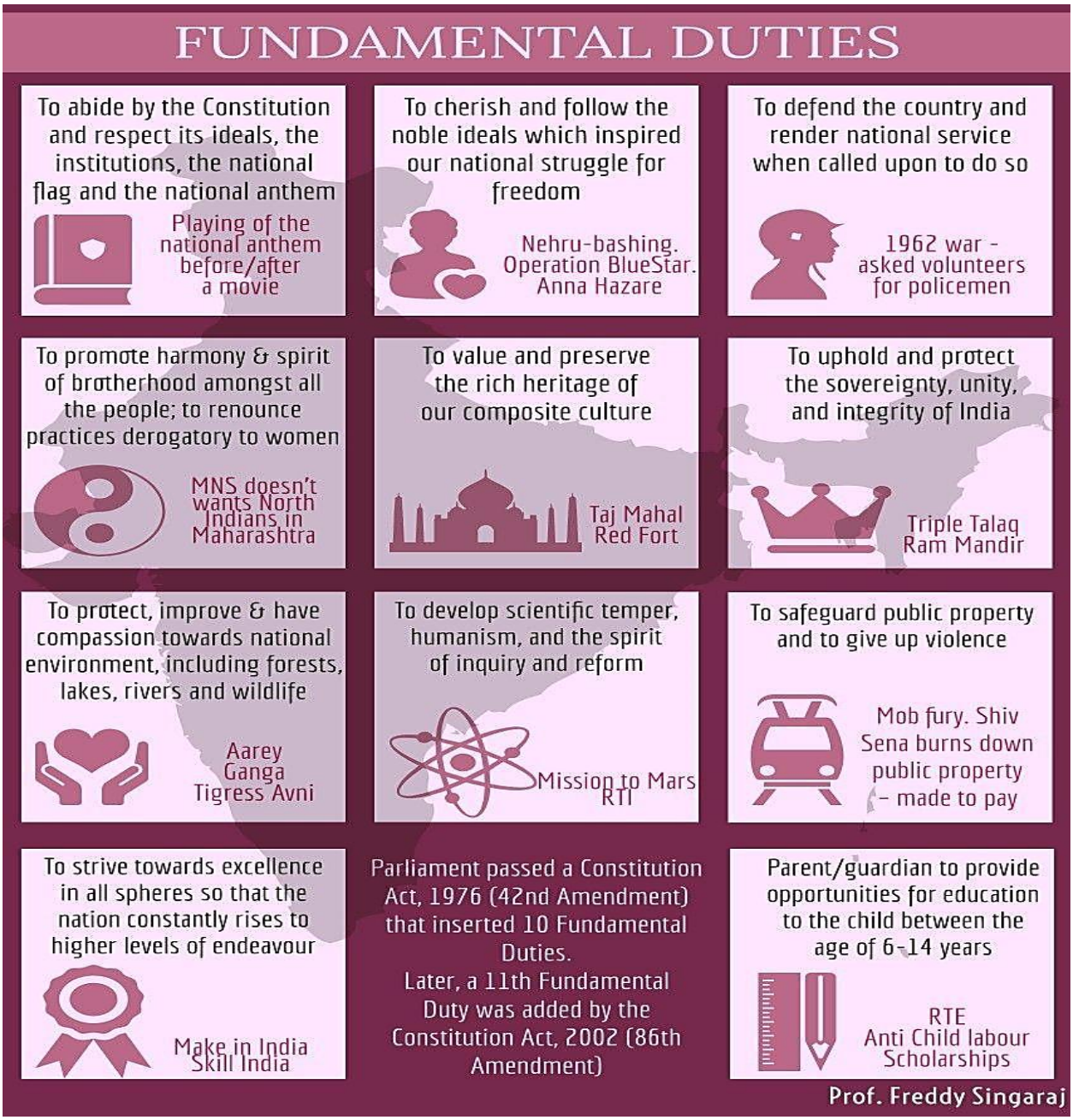
- DPSP are backed by public opinion.
- Provide for a welfare state.
- Importance as Moral Ideals.
- Directives constitute a Guide for the State.
- Source of continuity in policies.
- Are supplementary to fundamental rights.
- Yardstick for measuring the Worth of the Government.
- Helpful in interpretation of the Constitution.
- Ambiguity of Directive Principles is useful.

Fundamental Duties (Chapter IVA, Article-51A)

1) FDs were included to constitution on 11 December 1976 by *42nd* amendment.
2) To abide by the constitution and respect its ideals and institutions, the national flag and national anthem.
3) To cherish and follow the noble ideals which inspired our national struggle for freedom.
4) To uphold and protect the sovereignty, unity and integrity of India.
5) To defend the country/motherland and render national service when called upon to do so.
6) To promote harmony and spirit of common brotherhood amongst all the people.
7) To value and pressure, the rich heritage of our composite culture.
8) To protect and improve the natural environment.
9) To develop the scientific temper, humanism and the spirit of inquiry and reform.
10) To safeguard the public properties and avoid violence.

11) To strive towards excellence.

12) To provide opportunities for education to the child (6-14 age) [as per 86th amendment John F Kennedy says, "Think not what the country can do for you; Think what you can do for your country".



Union Government

Parliamentary System (**Rajya Sabha and Lok Sabha)** has been extracted from the constitution of U.K.

Federal System (***Central and State governments*** with powerful Central Government) has been borrowed from the constitution of Canada.

Central and State Relations:

- ❑ 29 States
- ❑ 7 Union territories

Union List (Central List) - 97 (Defence, Army, CBI, Foreign Affairs, Airways, Railways, Post etc.)

State List - 66 (Police, Health, Agriculture, Library, Mines, Fishery etc.

Concurrent List - 47 (IPC, Marriage and Divorce, Economic and Social Planning, Education, Religion etc.

The union government has three important organs:

1) ***Legislature***
2) ***Executive***
3) ***Judiciary***

Union Executive

- ✓ UK type of executive except queen in England, we have president.
- ✓ Union Executive includes the President, Vice-president, PM & Council of Ministers.

President

- ➢ Constitutional head of the country
- ➢ Does not belong to any party
- ➢ Term- 5 years (maximum 2 terms)
- ➢ Elected by Electoral College (MLA's and elected MP's of all states and union territories)
- ➢ Can be removed through 'Motion of Impeachment'.
- ➢ First citizen of nation.
- ➢ Salary: Five lakh and allowances

Qualification:

- ❑ Indian
- ❑ 35 years of age

- Should not have a profitable job in central or any state government.
- Should be qualified to be Lok Sabha member.

Powers of President:

1) Executive Powers: The President is the commander-in-Chief of all armed forces. The President appoints the Prime Minister from the majority party in the Lok Sabha.

—On the advice of the PM, the President appoints the council of ministers.

—The President has vast powers of appointment.

The following is the list of appointments that he makes, although with the advice of the ruling government:

i) Chief Justice & other Justices of Supreme Court and High Courts.
ii) Attorney-General
iii) Comptroller and Auditor-General of India.
iv) Members of UPSC and Election Commission.
v) Governors of States and Chief Commissioners of Union territories.
vi) Ambassadors and other diplomatic representatives.
vii) Members of Finance Commission.
viii) Commissioners for Scheduled Castes, tribes etc.
ix) Chiefs of Army, Navy and Air Force.

2) Judicial Power —The President appoints various judges of the Supreme Court and the High Courts. —Under Article 72,the President is given the power to pardon or reduce the sentences given to criminals by the Supreme Court on grounds of humanity.

3) Legislative Powers:

—It is the President who summons the houses of parliament for various sessions

—He can send messages or address the joint sessions of the parliament.

When bills are approved by both the houses, his assent is necessary for making them 8 the President has a right to send back the bills for reconsideration. The power to withhold assent to a bill is known as 'veto Power'. He can dissolve the parliament or State Legislature and impose

Presidents Rule. However, the advice of the PM, CM or Governor is needed as the case may be. When the Parliament is not in session, the president can issue an ordinance which has the same force and effect as an Act of parliament. He may also withdraw the Ordinance at any time he likes. President has the authority to nominate 2 Anglo-Indian members to the Lok Sabha and 12 other members to the Rajya Sabha.

4) Emergency Powers —The president can declare Emergency in any of the following three situations.

i) when the constitutional machinery has failed in any part or the whole of India.
ii) When the country is threatened by enemy attack.
iii) When the financial condition is in crisis. (In which case financial emergency is declared)

As we all know that so far, Emergency was declared 4 times in our country. First in 1962, when China attacked India, second in 1965 due to Indo-Pakistan War, third in 1971 again due to Indo-Pak War and the last time in 1975 which was an internal emergency.

THE VICE PRESIDENT OF INDIA

The Vice-President of India has a significant role to play only when the President dies or resigns or incapacitated in any other way, in which case he becomes the active President. Otherwise, by virtue of his office, he is the Chairman of the Rajya Sabha presiding over it.

He has a term of 5 years; can resign by writing to the President; or may be removed by a resolution of the majority of all members of the Rajya Sabha, and approved by the Lok Sabha.

To be eligible to become a Vice-President a Candidate must

a) Be a citizen of India.

b) Have completed 35 years of age.

c) Be qualified for election as a member of Rajya Sabha.

The Vice-President is elected (a joint session is called) by an electoral college consisting of

i) The members of the Lok Sabha nominated & elected.

ii) The members of the Rajya Sabha nominated and elected.

The election is by the system of proportional representation by means of the single transferable vote just like the election of President, but the difference is that in case of Vice-President, members of the state legislature have no right to vote. There is striking similarity between the role of the Vice-President in India and that of Vice-President of U.S.A. But there is one major difference. If the President of U.S.A. dies in office or is removed from office, the Vice-President takes over the President's office and continues in that capacity for the full length of the unexpired term whereas in India, if the president dies or resigns or removed, the Vice-President will act as President only for a maximum period of 6 months.

THE PRIME MINISTER OF INDIA

Primus Inter Pares' is how a Prime Minister described in England. Literally translated, it means 'First among equals'. But in Indian context, the prime Minister is much more than that. He is perhaps the most powerful man in India. The Prime Minister occupies a pivotal place in our parliamentary democracy and the entire political system revolves around him. The Prime Minister of India carries the burden of the hopes and aspirations of more than a billion people which account for about $1/6^{th}$ of the population on this planet.

Manner of appointment of PM

According to Article 75, the Prime Minister is appointed by the President of India.

But the President has no real choice in the matter. He must appoint the leader of the majority party in the Lok sabha as the prime Minister.

However, if no political party secures absolute majority, the President can exercise his discretion. Term of Prime Minister — There is no fixed term of office for the Prime Minister. He holds office "during the pleasure of the president". This means that he can remain in office as long as he is chosen leader of the majority party in Lok sabha, until next election.

The Prime Minister may end his tenure for the following reasons:

i) His own resignation.

ii) His party chooses another leader.

iii) Ano-confidence motion.

iv) A split or defection in his party removing majority status.

v) Rejection of the budget.

vi) Dissolution of Lok Sabha.

Role of Prime Minister

1) It is the Prime Minister who selects other Ministers, allots them various portfolios, monitors their performance and provides guidance & leadership when needed.

2) The PM may demand the resignation of any Minister or may dismiss him if he does not resign.

3) The PM presides over the meetings of the cabinet and co-ordinates the works of various ministries.

4) The prime Minister is the link between the President and the Council of Ministers. Article 78 makes it the duty of the PM to communicate to the president all decisions made by the Council of Ministers and to give the President any information desired by him.

5) If the President desires something to be considered by the cabinet, he communicates it to the PM.

6) The PM may shuffle and reshuffle the ministries at his own discretion.

7) The PM recommends, in consultation with his colleagues, the persons to be appointed as judges, ambassadors, governors etc.

8) The PM and his cabinet recommend to the President to Summon, prorogue (to terminate meetings without dissolving), or dissolve Lok Sabha. Similarly, the PM advises the President to declare emergencies when the need arises.

9) The PM generally determines the financial policies of the government. It is he who ensures that the annual budget is properly prepared on time and submitted for the approval of the Parliament.

10) The prime Minister represents the country in various international conferences and organizations.

COUNCIL OF MINISTERS

The Union Council of Ministers is a composite body of all ministers with and without Cabinet rank. It includes the Prime Minister who is the leader or the head of the council of Ministers. It is the Prime Minister who selects the ministers, allocates them portfolios, monitors their work and asks then to resign if they do not Perform.

Appointment of a Minister: The president appoints a Minister and inducts him to the Council of Ministers, upon the advice of Prime Minister. Each minister is generally in charge of the department entrusted to him by the PM He is individually responsible for the proper working of his ministry.

Qualification to be a Minister: The important qualification to become a Minister is that he must be a member of either Lok Sabha or Rajya Sabha. If a minister is not a member of parliament, he must become a member within a period of 6 months from the date of his appointment. Otherwise, he ceases to be a minister. To become a MP he may either get elected to Lok Sabha or get nominated to Rajya Sabha.

Oath: Every minister must take an oath of office before he assumes the office. It is the President of India who administers the oath of secrecy to each minister.

Categories of Minister

1. Cabinet Ministers: A minister of higher rank is a cabinet minister. The Prime Minister and all such ministers of higher rank form the cabinet while the council of Ministers consists of ministers of all ranks. The strength of council of Ministers will be generally around 50 to 60 whereas the strength of the cabinet would be around 15-20. The council of Ministers do not meet

as a body to transact government. business. It is the cabinet which meets often determines the policies and programs of the government.

2) Ministers of State: These are Ministers of lower rank who have to work under a Cabinet Minister of the concerned department. — Sometimes Ministers of State may be given independent charge of their portfolios.

3) Deputy Minister: -These ministers also assist the Cabinet Minister. — They perform such functions as may be assigned to them by the cabinet Ministers time to time. —They do not enjoy any independent powers.

4) Parliamentary Secretaries: In addition to various ministers, the Prime Minister may appoint a few Parliamentary Secretaries. —They assist the Cabinet Ministers during the sessions of the parliament. Usually, young promising members of the ruling party are appointed parliamentary secretaries in order to groom them for future.

Module 4:

Parliament - LS and RS, Parliamentary Committees, Important Parliamentary Terminologies. Judicial System of India, Supreme Court of India and other Courts, Judicial Reviews and Judicial Activism.

PARLIAMENT OF INDIA

India has adopted the parliamentary form of democracy, also called the ‘Westminster Model', The parliamentary form of democracy has generally 3 basic characteristics:

i) Representation of the people.

ii) Responsible government

iii) Accountability of the Council of Ministers to the legislature.

The Parliament consists of the President and the two Houses-Upper House and Lower House. The Upper House is generally known as Rajya Sabha or also called the 'House of Elders'. The Lower House is generally known as Lok Sabha or 'House of people'. At the commencement of

the first session of the newly elected Lok Sabha and also during the commencement of the first session of Lok Sabha of each year, the President addresses a joint session of both houses. A bill passed by both the houses does not become law without the President's signature; Thus, the President is an integral part of the parliament yet he is not a member of any of the houses.

Qualification and Disqualification of an MP

No person shall be qualified to be a chosen member of the parliament unless 1) He is a citizen of India. 2) He is 25 years of age to become a member of Lok Sabha and 30 years of age to become a member of Rajya Sabha. A part from the above the parliament has been empowered by Art. 84 to prescribe additional qualifications to become a M.P.

A person is disqualified to be a member of parliament:

1) If he is guilty of corrupt practices in relation to an election.

2) If he is convicted for an offence resulting in imprisonment for 2 or more years.

3) If he has failed to lodge the accounts of his election expenses.

4) If he having an interest in any contract with the government.

5) If he is holding in office of profit.

6) If he is dismissed from government service.

7) If he is of unsound mind.

8) If he absents himself for a period of 60 days from the meetings of the houses without the permission of the House.

9) If he has claimed insolvency.

10) If he voluntarily acquires the citizenship of another country.

11) If he voluntarily resigns from the membership of the party on whose ticket he was elected.

12) It a member who has been elected as an independent member joins any political Party.

The Rajya Sabha and it's Composition

The Rajya Sabha is a permanent house and it cannot be dissolved by the President. The Rajya Sabha is composed of not more than 250 members. Out of these. 238 are to be the representatives of the States and Union Territories and 12 are to be nominated by the President — Persons who are nominated to Rajya Sabha are usually eminent people having special knowledge or practical experience in literature, art, science, and social service. Examples of such members are Jaya Bacchan, Hema Malini, etc. Rajya sabha has a federal character. The members of the State legislative assemblies elect the representative of that state. This is by the same system of proportional representation by means of single transferable vote' In U.S.A. all states have equal representation (2 members from each) in the Senate irrespective of their population or size whereas in India the number of seats allotted to a state is in proportion to its population (e.g, U.P. has 34 members) The term of a member of Rajya Sabha is 6 years which is the same as that of a senator in U.S.A. and Australia. 1/3rd of the members of Rajya Sabha retire after every two years and election are held only for the vacate seats. The Lok Sabha and it's Composition — The Lok Sabha is composed of not more than 545 seats as a total. 530 of these are allocated to the states while 13 come from the Union Territories. —The president may nominate not more than 2 members of Anglo-Indian Community to the Lok Sabha. —The election to the Lok Sabha is based on adult franchise. Every citizen who is not less than 18 years of age and not disqualified by law is entitled to vote in an election. Seats are reserved for Scheduled Castes and Scheduled Tribes. However there is no reservation based on religion. The Lok Sabha is elected for 5 years from the date of commencement of its first session. It may however be dissolved earlier by the president if the need arises. When an emergency is proclaimed under Art. 352, the normal term of 5 years may be extended for a period not exceeding 1 year.

Parliamentary Sessions:

1) The Budget Session: This is the first session of the year and commences in the third week of February. The session starts with the address of the President to both the Houses assembled

together. The Railway budget is presented first followed by the General Budget on the last day of February.

2) The Monsoon Session: This session begins usually in the third week of July. The session is mostly devoted to legislative business.

3) The winter Session: The session generally starts in early November and ends in the third week of December. Apart from the usual questions, calling attention motions and other motions, the major portion of time is set aside for legislative work.

Terminology of Parliament

1) Adjournment: Is the suspension of work in a sitting. This is announced by the speaker and may last from a few minutes to several days.

2) Adjournment Sine die: Sine die means without setting a date for the next meeting.

3) Prorogation: Bringing a session to an end is prorogation.

4) Dissolution: It is ending the life of Lok Sabha, for that term.

5) A session: It is a period of time commencing on the first day of the meeting and ending on the day it is prorogued or dissolved.

6) Recess: The period of 'no work' between two sessions of a parliament is known as recess.

7) Sitting: In a day the parliament has two sittings - one from morning till lunch and second from post lunch till adjournment. In each sitting the time may be allotted for particular business.

8) Question Hour: In the morning when the Lok sabha or Rajya Sabha assembles at 11 a.m, the first one hour is devoted to answering questions. This is called Question Hour.

9) Zero Hour: It is the time which immediately follows Question Hour, usually at 12 noon. important & pressing issues could be raised without notice at this hour but the Government is not obliged to answer them. Zero hour is neither mandatory nor exactly should last for an hour.

10) Pro-tem Speaker: Temporary Speaker for that session.

11) Quorum: Quorum is the minimum no. of members required to conduct a parliamentary session. It is usually $1/10^{th}$ of the total number.

Officers of the Parliament

1) Speaker —The Speaker is the Chief Officer of the Lok Sabha. There is a separate secretarial staff to assist him in the discharge of his duties. —He presides over the sittings of the Lok Sabha and controls it's working. He is responsible for upholding the dignity and the privileges of the house. — Only an absolute majority of all members of the house may elect or remove the speaker by a resolution, and not by a fraction of the members present on any given day. Hence the speaker may conduct the proceedings in an impartial manner without remaining in constant fear of being removed.

2)Deputy Speaker — Deputy speaker is a member of the Lok sabha who is elected by the house after the Speaker is chosen. —While the Speaker generally belongs to the ruling party, the Deputy Speaker belongs to the opposition party. However, in principle, both Speakers are expected to be impartial in the conduction of legislative procedures. The Deputy Speaker does all the functions of the Speaker in his absence.

3)Panel of Chairmen — The Speaker nominates six members of the house to form a Panel of Chairmen. In the absence of both Speaker and Deputy Speaker, any one of the members of this panel can preside over the deliberations of the Parliament. Types of Legislative Procedure The most important function of the parliament is to enact laws. Before nacting a law, the issue is debated at length by the members and then put to vote.

Legislative procedure is of 4 types depending on the type of bill:

1)Money Bill-(defined in Art.110)

2) Financial Bill (defined in Art.117)

3)Constitution Amendment Bill (defined in Art.368)

4) Ordinary Bill (All bills which do not come under money bill, financial bill and Constitution amendment bill)

Powers and Functions of Parliament & its Members

1) Freedom of debates and Proceedings The members of Parliament enjoy full freedom of speech and debate inside the houses. They cannot be impeached or questioned for what they say and do inside the Parliament.

2) The Right to Publish debates and the right to restrain others from publishing Although no person can be tried in the court for reporting the true proceedings of the Parliament, the house nevertheless can prohibit the publication- of its proceedings by not allowing any body into the parliament session.

3) Right to exclude strangers from the house Right to admission to view parliamentary proceedings is reserved.

4) Right to regulate internal matters The Parliament can regulate all matters arising within the walls i.e., no court procedure is needed.

5) Right to Punish members & outsiders for breach of privilege. The Parliament has the power to admonish or reprimand anybody who brings down the dignity of the house. The editor of a weekly (Blitz) was once called to the bar of the house (Lok sabha) and reprimanded for publishing an article which was derogatory to the dignity of the house. None other than Smt. Indira Gandhi was expelled from Lok Sabha and her seat was rendered vacant on 19th Dec 1978 because her conduct had brought disrepute to the house.

SUPREME COURT OF INDIA

Perhaps no court in the world has the reach, powers and jurisdiction as the Supreme Court of India. Over a billion people of this country look up to the Supreme Court in their quest for liberty, equality, rights and democracy. The Supreme Court is at the apex of the judiciary system of India rendering justice to millions in an independent and impartial manner. Echoing the unique role played by the Supreme Court Sir Alladi Krishnaswamy Aiyar has said, "The future evolution of the Indian Constitution wilt depend to a large extent upon the Supreme Court and the direction

given to it by that court." The Supreme Court of India was created by an Act of Parliament in 1950 and the seat is situated in New Delhi. Article 124 lo 147 in chapter IV of the Constitution deal with the Supreme Court, its organization and powers. These articles confer vast powers to the Supreme court so as to play a predominant rule in our political system. The courts also play the role of the custodian of Fundamental Rights and do not permit the government to become autocratic. Thus, the Supreme Court plays an important role the life of the nation.

Composition of Supreme Court

The Supreme Court consists of Chief Justice of India and 25 other judges. In 1950, when the court was set up under the new Constitution, it consisted of only 8 judges. Appointment of a Judge The chief Justice of supreme court is appointed by the president in consultation with other judges, or with high courts as he may deem necessary for the purpose. Normally, the Senior-most sitting judge is appointed as Chief Justice of India, but the President reserves the right to appoint anyone ignoring the seniority rule. —All other judges of the Supreme court are also appointed by the President in consultation with the Chief Justice.

Qualification to be a Supreme Court judge

To be appointed as a judge of the Supreme Court, a person must be:

1) A citizen of India
2) A judge of a High Court for at least 5 years or
3) An advocate of a High Court for at least 10 years, or
4) A distinguished jurist in the opinion of the president.

Term of Supreme Court Judges

A judge of the Supreme Court may hold office until he attains 65 years of age. But then is no minimum age for appointment as a judge. A retired judge is prohibited from working as an advocate in any court of the country. However, he can.be appointed by the Government for working in special tasks like inquiry Committees, Judicial investigations, Loka Ayukta etc., Impeachment of a Supreme Court Judge Article 124(4) of the constitution lays down the procedure for the impeachment of a Supreme Court Judge. A judge may be removed from his

office, on the ground of i) misbehavior ii) incapacity The impeachment procedure may be broadly outlined in the following steps:

1) The Parliament makes an address to the President to remove a particular judge. A motion for presenting such an address to the President must be signed by at least 100 members of Lok Sabha or 50 members of Rajya Sabha, depending on where the motion is moved.

2) The Speaker of the Lok Sabha or the Chairman of Rajya Sabha may consult legal experts or other authorities and may admit the motion or refuse to admit it.

3) If the motion is admitted, a committee consisting of the following 3 members. will be constituted. i) The Chief Justice or any one of the Supreme Court Judges ii) Chief Justice of any one of the High Courts of India. iii) a person who is a distinguished jurist.

4) If the Committee concludes that the judge is guilty of misbehavior or suffers from an incapacity, the issue is taken up in the House where it was raised.

5) The impeachment motion must be passed by each House by a majority of not less than 2/3rd of the members of that House present and voting. The address to remove the judge is then presented to the President.

6) The President passes an order removing the judge.

Remuneration to Judges

The Chief Justice of India is paid a salary of Rs. 100,000 per month and each of the judges Rs. 90,000. They are provided a rent-free furnished accommodation and a car; besides they are entitled to such other allowances and privileges as may be prescribed by the parliament from time to time.

Power and Jurisdiction of the Supreme Court

The Supreme Court of India has vast jurisdiction and extensive judicial powers. Important among these are briefly discussed below:

1) Original Jurisdiction — Original jurisdiction means that the Supreme Court has the final say in any disputes regarding legal rights arising: i) Between Govt. of India and one or more States. ii) Between two or more States. iii) Between Govt of India and one or more States on one side and one or more states on the other

2) Appellate Jurisdiction — As the highest court of appeal in the country the Supreme Court admits the following appeals. i) Appeals in Constitutional matters. ii) Appeals in Civil matters. iii)Appeals in criminal matters. iv) Appeals by special leave granted by the Supreme Court. v) Appeals permitted by miscellaneous Acts.

3) Guardian of Fundamental Rights —The Supreme Court can declare any Act of the Central or State Governments as null and void, if it encroaches upon the Fundamental Rights of the citizens. The Court can issue writs of the nature of Habeas Corpus, Mandamus, Prohibition, Quo Warranto and Certiorari.

Habeas Corpus: It líterally means 'have his body'. By issuing this writ the court can cause any person who has been detained or imprisoned to be physically brought before the court. The court then examines the reason for his detention. If there is no legal justification, he is directed to be set free.

Mandamus: It literally means 'a command'. It is a command directing a person, corporation, public authority or Government to act as specified in the writ. The action directed to be done is normally a public duty. Mandamus is like a wake-up call. It tells the sleeping authority to wake up and perform its public duty. It is a writ which demands action from the concerned authority.

Quo Warranto; It literally means “where is your warrant of appointment?” The court by this writ examines the, legality of the claim of a person to a public office. It he is unable to show his legal right he may be dismissed by the court. Prohibition: This writ is issued by a superior court to an inferior court or tribunal to prevent it from giving judgements in areas where it does not have the jurisdiction.

Certiorari: This writ is again issued by a superior court to an inferior court or tribunal asking it to transfer the case over which the lower court does not have jurisdiction.

4) Judicial Review Judicial Review is the power of the Supreme Court to examine whether the Acts of Central and State government violate the Constitution in any way. lf so they can be declared 'Ultra Vires' i.e., unconstitutional and rendered null and void.

5) Judicial Activism —The power of the Supreme Court to step in voluntarily to help the cause of the common man or any other cause concerning the well-being of the country is known as Judicial Activism. — In 1985, the then Chief justice of India, Justice P.N. Bhagavati converted a letter written to him on a post card by an aggrieved citizen into a PIL (Public interest litigation).